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February 11, 2025

SENATE BILL NO. 541

By: Gollihare of the Senate

and

Miller of the House

An Act relating to crimes and punishments; amending 21 O.S. 2021, Section 13.1, as amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1), which relates to required service of minimum percentage of sentence; modifying statutory references to certain criminal offenses; modifying name of certain unlawful act; amending 21 O.S. 2021, Section 644, as last amended by Section 1, Chapter 38, O.S.L. 2024 (21 O.S. Supp. 2024, Section 644), which relates to assault and battery; modifying provisions related to certain offense; amending 57 O.S. 2021, Section 571, as last amended by Section 13, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024, Section 571), which relates to violent crimes; adding certain offenses; updating statutory language; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

SECTION 1. AMENDATORY 21 O.S. 2021, Section 13.1, as amended by Section 1, Chapter 151, O.S.L. 2024 (21 O.S. Supp. 2024, Section 13.1), is amended to read as follows:

Section 13.1. Persons convicted of:

- 1 1. First degree murder as ~~defined~~ provided for in Section 701.7
2 of this title;
- 3 2. Second degree murder as ~~defined by~~ provided for in Section
4 701.8 of this title;
- 5 3. Manslaughter in the first degree as ~~defined by~~ provided for
6 in Section 711 of this title;
- 7 4. Poisoning with intent to kill as ~~defined by~~ provided for in
8 Section 651 of this title;
- 9 5. Shooting with intent to kill, use of a vehicle to facilitate
10 use of a firearm, crossbow or other weapon, assault, battery, or
11 assault and battery with a deadly weapon or by other means likely to
12 produce death or great bodily harm, as provided for in ~~Section~~
13 Sections 644 and 652 of this title;
- 14 6. Assault with intent to kill as provided for in Section 653
15 of this title;
- 16 7. Conjoint robbery as ~~defined by~~ provided for in Section 800
17 of this title;
- 18 8. Robbery with a dangerous weapon as ~~defined~~ provided for in
19 Section 801 of this title;
- 20 9. First degree robbery as ~~defined~~ provided for in Section 797
21 of this title;
- 22 10. First degree rape as provided for in Section 1111~~7~~ or 1114
23 ~~or 1115~~ of this title;
- 24

1 11. First degree arson as ~~defined~~ provided for in Section 1401
2 of this title;

3 12. First degree burglary as provided for in Section ~~1436~~ 1431
4 of this title;

5 13. Bombing as ~~defined~~ provided for in Section 1767.1 of this
6 title;

7 14. Any crime against a child as provided for in Section 843.5
8 of this title;

9 15. Forcible sodomy as ~~defined~~ provided for in Section 888 of
10 this title;

11 16. Child ~~pornography~~ sexual abuse material or aggravated child
12 ~~pornography~~ sexual abuse material as ~~defined~~ provided for in Section
13 1021.2, 1021.3, 1024.1, 1024.2, or 1040.12a of this title;

14 17. Child sex trafficking as defined in Section 1030 of this
15 title;

16 18. Lewd molestation of a child as ~~defined~~ provided for in
17 Section 1123 of this title;

18 19. Abuse of a vulnerable adult as defined in Section 10-103 of
19 Title 43A of the Oklahoma Statutes;

20 20. Aggravated trafficking as provided for in subsection C of
21 Section 2-415 of Title 63 of the Oklahoma Statutes;

22 21. Aggravated assault and battery as provided for in Section
23 646 of this title upon any person defending another person from
24 assault and battery; or

1 22. Human trafficking as ~~provided for~~ defined in Section 748 of
2 this title,
3 shall be required to serve not less than eighty-five percent (85%)
4 of any sentence of imprisonment imposed by the judicial system prior
5 to becoming eligible for consideration for parole. Persons
6 convicted of these offenses shall not be eligible for earned credits
7 or any other type of credits which have the effect of reducing the
8 length of the sentence to less than eighty-five percent (85%) of the
9 sentence imposed.

10 SECTION 2. AMENDATORY 21 O.S. 2021, Section 644, as last
11 amended by Section 1, Chapter 38, O.S.L. 2024 (21 O.S. Supp. 2024,
12 Section 644), is amended to read as follows:

13 Section 644. A. Assault shall, upon conviction, be punishable
14 by imprisonment in a county jail not exceeding thirty (30) days, ~~or~~
15 by a fine not more than Five Hundred Dollars (\$500.00), or by both
16 such fine and imprisonment.

17 B. Assault and battery shall, upon conviction, be punishable by
18 imprisonment in a county jail not exceeding ninety (90) days, ~~or~~ by
19 a fine not more than One Thousand Dollars (\$1,000.00), or by both
20 such fine and imprisonment.

21 C. Any person who commits any assault and battery against a
22 current or former intimate partner or a family or household member
23 as defined by Section 60.1 of Title 22 of the Oklahoma Statutes
24 shall be guilty of domestic abuse. Upon conviction, the defendant

1 shall be punished by imprisonment in the county jail for not more
2 than one (1) year, ~~or~~ by a fine not exceeding Five Thousand Dollars
3 (\$5,000.00), or by both such fine and imprisonment. Upon conviction
4 for a second or subsequent offense, the person shall be punished by
5 imprisonment in the custody of the Department of Corrections for not
6 more than four (4) years, ~~or~~ by a fine not exceeding Five Thousand
7 Dollars (\$5,000.00), or by both such fine and imprisonment. The
8 provisions of Section 51.1 of this title shall apply to any second
9 or subsequent offense.

10 D. ~~1. Any person who, with intent to do bodily harm and~~
11 ~~without justifiable or excusable cause, commits any assault,~~
12 ~~battery, or assault and battery upon an intimate partner or a family~~
13 ~~or household member as defined by Section 60.1 of Title 22 of the~~
14 ~~Oklahoma Statutes with any sharp or dangerous weapon, upon~~
15 ~~conviction, is guilty of domestic assault or domestic assault and~~
16 ~~battery with a dangerous weapon which shall be a felony and~~
17 ~~punishable by imprisonment in the custody of the Department of~~
18 ~~Corrections not exceeding ten (10) years, or by imprisonment in a~~
19 ~~county jail not exceeding one (1) year. The provisions of Section~~
20 ~~51.1 of this title shall apply to any second or subsequent~~
21 ~~conviction for a violation of this paragraph.~~

22 2. Any person who, with intent to do bodily harm and without
23 such justifiable or excusable cause, ~~shoots~~ commits any assault and
24 battery upon an intimate partner or a family or household member as

1 defined by Section 60.1 of Title 22 of the Oklahoma Statutes by
2 means of any deadly weapon or by such other means or force that is
3 likely to produce death shall, upon conviction, be guilty of
4 domestic assault and battery with a deadly weapon which shall be a
5 felony punishable by imprisonment in the custody of the Department
6 of Corrections not exceeding life. The provisions of Section 51.1
7 of this title shall apply to any second or subsequent conviction for
8 a violation of this ~~paragraph~~ subsection.

9 E. Any person convicted of domestic abuse committed against a
10 pregnant woman with knowledge of the pregnancy shall be guilty of a
11 misdemeanor, punishable by imprisonment in the county jail for not
12 more than one (1) year.

13 Any person convicted of a second or subsequent offense of
14 domestic abuse against a pregnant woman with knowledge of the
15 pregnancy shall be guilty of a felony, punishable by imprisonment in
16 the custody of the Department of Corrections for not less than ten
17 (10) years.

18 Any person convicted of domestic abuse committed against a
19 pregnant woman with knowledge of the pregnancy and a miscarriage
20 occurs or injury to the unborn child occurs shall be guilty of a
21 felony, punishable by imprisonment in the custody of the Department
22 of Corrections for not less than twenty (20) years.

23 F. Any person convicted of domestic abuse as defined in
24 subsection C of this section that results in great bodily injury to

1 the victim shall, upon conviction, be guilty of a felony and
2 punished by imprisonment in the custody of the Department of
3 Corrections for not more than ten (10) years~~7~~ or by imprisonment in
4 the county jail for not more than one (1) year. The provisions of
5 Section 51.1 of this title shall apply to any second or subsequent
6 conviction of a violation of this subsection.

7 G. Any person convicted of domestic abuse as defined in
8 subsection C of this section that was committed in the presence of a
9 child shall be punished by imprisonment in the county jail for not
10 less than six (6) months nor more than one (1) year, ~~or~~ by a fine
11 not exceeding Five Thousand Dollars (\$5,000.00), or by both such
12 fine and imprisonment. Any person convicted of a second or
13 subsequent domestic abuse as defined in subsection C of this section
14 that was committed in the presence of a child shall be punished by
15 imprisonment in the custody of the Department of Corrections for not
16 less than one (1) year nor more than five (5) years, ~~or~~ by a fine
17 not exceeding Seven Thousand Dollars (\$7,000.00), or by both such
18 fine and imprisonment. The provisions of Section 51.1 of this title
19 shall apply to any second or subsequent offense. For every
20 conviction of a domestic abuse crime in violation of any provision
21 of this section committed against an intimate partner or a family or
22 household member as defined by Section 60.1 of Title 22 of the
23 Oklahoma Statutes, the court shall:
24

1 1. Specifically order as a condition of a suspended or deferred
2 sentence that a defendant participate in counseling or undergo
3 treatment to bring about the cessation of domestic abuse as
4 specified in paragraph 2 of this subsection;

5 2. a. The court shall require the defendant to complete an
6 assessment and follow the recommendations of a
7 batterers' intervention program certified by the
8 Attorney General. If the defendant is ordered to
9 participate in a batterers' intervention program, the
10 order shall require the defendant to attend the
11 program for a minimum of fifty-two (52) weeks,
12 complete the program, and be evaluated before and
13 after attendance of the program by program staff.
14 Three unexcused absences in succession or seven
15 unexcused absences in a period of fifty-two (52) weeks
16 from any court-ordered batterers' intervention program
17 shall be prima facie evidence of the violation of the
18 conditions of probation for the district attorney to
19 seek acceleration or revocation of any probation
20 entered by the court.

21 b. A program for anger management, couples counseling, or
22 family and marital counseling shall not solely qualify
23 for the counseling or treatment requirement for
24 domestic abuse pursuant to this subsection. The

1 counseling may be ordered in addition to counseling
2 specifically for the treatment of domestic abuse or
3 per evaluation as set forth below. If, after
4 sufficient evaluation and attendance at required
5 counseling sessions, the domestic violence treatment
6 program or licensed professional determines that the
7 defendant does not evaluate as a perpetrator of
8 domestic violence or does evaluate as a perpetrator of
9 domestic violence and should complete other programs
10 of treatment simultaneously or prior to domestic
11 violence treatment, including but not limited to
12 programs related to the mental health, apparent
13 substance or alcohol abuse, or inability or refusal to
14 manage anger, the defendant shall be ordered to
15 complete the counseling as per the recommendations of
16 the domestic violence treatment program or licensed
17 professional;

- 18 3. a. The court shall set a review hearing no more than one
19 hundred twenty (120) days after the defendant is
20 ordered to participate in a domestic abuse counseling
21 program or undergo treatment for domestic abuse to
22 assure the attendance and compliance of the defendant
23 with the provisions of this subsection and the
24 domestic abuse counseling or treatment requirements.

1 The court may suspend sentencing of the defendant
2 until the defendant has presented proof to the court
3 of enrollment in a program of treatment for domestic
4 abuse by an individual licensed practitioner or a
5 domestic abuse treatment program certified by the
6 Attorney General and attendance at weekly sessions of
7 such program. Such proof shall be presented to the
8 court by the defendant no later than one hundred
9 twenty (120) days after the defendant is ordered to
10 such counseling or treatment. At such time, the court
11 may complete sentencing, beginning the period of the
12 sentence from the date that proof of enrollment is
13 presented to the court, and schedule reviews as
14 required by subparagraphs a and b of this paragraph
15 and paragraphs 4 and 5 of this subsection. Three
16 unexcused absences in succession or seven unexcused
17 absences in a period of fifty-two (52) weeks from any
18 court-ordered domestic abuse counseling or treatment
19 program shall be prima facie evidence of the violation
20 of the conditions of probation for the district
21 attorney to seek acceleration or revocation of any
22 probation entered by the court.

- 23 b. The court shall set a second review hearing after the
24 completion of the counseling or treatment to assure

1 the attendance and compliance of the defendant with
2 the provisions of this subsection and the domestic
3 abuse counseling or treatment requirements. The court
4 shall retain continuing jurisdiction over the
5 defendant during the course of ordered counseling
6 through the final review hearing;

7 4. The court may set subsequent or other review hearings as the
8 court determines necessary to assure the defendant attends and fully
9 complies with the provisions of this subsection and the domestic
10 abuse counseling or treatment requirements;

11 5. At any review hearing, if the defendant is not
12 satisfactorily attending individual counseling or a domestic abuse
13 counseling or treatment program or is not in compliance with any
14 domestic abuse counseling or treatment requirements, the court may
15 order the defendant to further or continue counseling, treatment, or
16 other necessary services. The court may revoke all or any part of a
17 suspended sentence, deferred sentence, or probation pursuant to
18 Section 991b of Title 22 of the Oklahoma Statutes and subject the
19 defendant to any or all remaining portions of the original sentence;

20 6. At the first review hearing, the court shall require the
21 defendant to appear in court. Thereafter, for any subsequent review
22 hearings, the court may accept a report on the progress of the
23 defendant from individual counseling, domestic abuse counseling, or
24

1 the treatment program. There shall be no requirement for the victim
2 to attend review hearings; and

3 7. If funding is available, a referee may be appointed and
4 assigned by the presiding judge of the district court to hear
5 designated cases set for review under this subsection. Reasonable
6 compensation for the referees shall be fixed by the presiding judge.
7 The referee shall meet the requirements and perform all duties in
8 the same manner and procedure as set forth in Sections 1-8-103 and
9 2-2-702 of Title 10A of the Oklahoma Statutes pertaining to referees
10 appointed in juvenile proceedings.

11 The defendant may be required to pay all or part of the cost of
12 the counseling or treatment, in the discretion of the court.

13 H. As used in subsection G of this section, "in the presence of
14 a child" means in the physical presence of a child; or having
15 knowledge that a child is present and may see or hear an act of
16 domestic violence. For the purposes of subsections C and G of this
17 section, "child" may be any child whether or not related to the
18 victim or the defendant.

19 I. For the purposes of subsections C and G of this section, any
20 conviction for assault and battery against an intimate partner or a
21 family or household member as defined by Section 60.1 of Title 22 of
22 the Oklahoma Statutes shall constitute a sufficient basis for a
23 felony charge:
24

1 1. If that conviction is rendered in any state, county, or
2 parish court of record of this or any other state; or

3 2. If that conviction is rendered in any municipal court of
4 record of this or any other state for which any jail time was
5 served; provided, no conviction in a municipal court of record
6 entered prior to November 1, 1997, shall constitute a prior
7 conviction for purposes of a felony charge.

8 J. Any person who commits any assault and battery by
9 strangulation or attempted strangulation against an intimate partner
10 or a family or household member as defined by Section 60.1 of Title
11 22 of the Oklahoma Statutes shall, upon conviction, be guilty of
12 domestic abuse by strangulation and shall be punished by
13 imprisonment in the custody of the Department of Corrections for a
14 period not less than one (1) year nor more than ten (10) years, ~~or~~
15 by a fine not more than Twenty Thousand Dollars (\$20,000.00), or by
16 both such fine and imprisonment. The provisions of Section 51.1 of
17 this title shall apply to any second or subsequent conviction of a
18 violation of this subsection. As used in this subsection,
19 "strangulation" means any form of asphyxia; including, but not
20 limited to, asphyxia characterized by closure of the blood vessels
21 or air passages of the neck as a result of external pressure on the
22 neck or the closure of the nostrils or mouth as a result of external
23 pressure on the head.
24

1 K. Any district court of this state and any judge thereof shall
2 be immune from any liability or prosecution for issuing an order
3 that requires a defendant to:

4 1. Attend a treatment program for domestic abusers certified by
5 the Attorney General;

6 2. Attend counseling or treatment services ordered as part of
7 any suspended or deferred sentence or probation; and

8 3. Attend, complete, and be evaluated before and after
9 attendance by a treatment program for domestic abusers, certified by
10 the Attorney General.

11 L. There shall be no charge of fees or costs to any victim of
12 domestic violence, stalking, or sexual assault in connection with
13 the prosecution of a domestic violence, stalking, or sexual assault
14 offense in this state.

15 M. In the course of prosecuting any charge of domestic abuse,
16 stalking, harassment, rape, or violation of a protective order, the
17 prosecutor shall provide the court, prior to sentencing or any plea
18 agreement, a local history and any other available history of past
19 convictions of the defendant within the last ten (10) years relating
20 to domestic abuse, stalking, harassment, rape, violation of a
21 protective order, or any other violent misdemeanor or felony
22 convictions.

23 N. Any plea of guilty or finding of guilt for a violation of
24 subsection C, F, G, I, or J of this section shall constitute a

1 conviction of the offense for the purpose of this act or any other
2 criminal statute under which the existence of a prior conviction is
3 relevant for a period of ten (10) years following the completion of
4 any court imposed probationary term; provided, the person has not,
5 in the meantime, been convicted of a misdemeanor involving moral
6 turpitude or a felony.

7 O. For purposes of subsection F of this section, "great bodily
8 injury" means bone fracture, protracted and obvious disfigurement,
9 protracted loss or impairment of the function of a body part, organ
10 or mental faculty, or substantial risk of death.

11 P. Any pleas of guilty or nolo contendere or finding of guilt
12 to a violation of any provision of this section shall constitute a
13 conviction of the offense for the purpose of any subsection of this
14 section under which the existence of a prior conviction is relevant
15 for a period of ten (10) years following the completion of any
16 sentence or court imposed probationary term.

17 SECTION 3. AMENDATORY 57 O.S. 2021, Section 571, as last
18 amended by Section 13, Chapter 151, O.S.L. 2024 (57 O.S. Supp. 2024,
19 Section 571), is amended to read as follows:

20 Section 571. As used in the Oklahoma Statutes, unless another
21 definition is specified:

22 1. "Capacity" means the actual available bedspace as certified
23 by the State Board of Corrections subject to applicable federal and
24

1 state laws and the rules and regulations promulgated under such
2 laws; and

3 2. "Violent crime" means any of the following felony offenses
4 and any attempts to commit or conspiracy or solicitation to commit
5 the following crimes:

6 a. assault, battery, or assault and battery with a
7 dangerous or deadly weapon, as provided for in
8 Sections 645 and 652 of Title 21 of the Oklahoma
9 Statutes,

10 b. assault, battery, or assault and battery with a deadly
11 weapon or by other means likely to produce death or
12 great bodily harm, as provided for in Section 652 of
13 Title 21 of the Oklahoma Statutes,

14 c. aggravated assault and battery on a police officer,
15 sheriff, highway patrolman, or any other officer of
16 the law, as provided for in Section 650 of Title 21 of
17 the Oklahoma Statutes,

18 d. poisoning with intent to kill, as provided for in
19 Section 651 of Title 21 of the Oklahoma Statutes,

20 e. shooting with intent to kill, as provided for in
21 Section 652 of Title 21 of the Oklahoma Statutes,

22 f. assault with intent to kill, as provided for in
23 Section 653 of Title 21 of the Oklahoma Statutes,
24

- 1 g. assault with intent to commit a felony, as provided
2 for in Section 681 of Title 21 of the Oklahoma
3 Statutes,
- 4 h. assaults with a dangerous weapon while masked or
5 disguised, as provided for in Section 1303 of Title 21
6 of the Oklahoma Statutes,
- 7 i. murder in the first degree, as provided for in Section
8 701.7 of Title 21 of the Oklahoma Statutes,
- 9 j. murder in the second degree, as provided for in
10 Section 701.8 of Title 21 of the Oklahoma Statutes,
- 11 k. manslaughter in the first degree, as provided for in
12 Section 711 of Title 21 of the Oklahoma Statutes,
- 13 l. manslaughter in the second degree, as provided for in
14 Section 716 of Title 21 of the Oklahoma Statutes,
- 15 m. kidnapping, as provided for in Section 741 of Title 21
16 of the Oklahoma Statutes,
- 17 n. burglary in the first degree, as provided for in
18 Section 1431 of Title 21 of the Oklahoma Statutes,
- 19 o. burglary with explosives, as provided for in Section
20 1441 of Title 21 of the Oklahoma Statutes,
- 21 p. kidnapping for extortion, as provided for in Section
22 745 of Title 21 of the Oklahoma Statutes,
- 23 q. maiming, as provided for in Section 751 of Title 21 of
24 the Oklahoma Statutes,

- 1 r. robbery, as provided for in Section 791 of Title 21 of
2 the Oklahoma Statutes,
- 3 s. robbery in the first degree, as provided for in
4 Section 797 et seq. of Title 21 of the Oklahoma
5 Statutes,
- 6 t. robbery in the second degree, as provided for in
7 Section 797 et seq. of Title 21 of the Oklahoma
8 Statutes,
- 9 u. armed robbery, as provided for in Section 801 of Title
10 21 of the Oklahoma Statutes,
- 11 v. robbery by two or more persons, as provided for in
12 Section 800 of Title 21 of the Oklahoma Statutes,
- 13 w. robbery with dangerous weapon or imitation firearm, as
14 provided for in Section 801 of Title 21 of the
15 Oklahoma Statutes,
- 16 x. child abuse, as provided for in Section 843.5 of Title
17 21 of the Oklahoma Statutes,
- 18 y. wiring any equipment, vehicle, or structure with
19 explosives, as provided for in Section 849 of Title 21
20 of the Oklahoma Statutes,
- 21 z. forcible sodomy, as provided for in Section 888 of
22 Title 21 of the Oklahoma Statutes,
- 23 aa. rape in the first degree, as provided for in Section
24 1114 of Title 21 of the Oklahoma Statutes,

- 1 bb. rape in the second degree, as provided for in Section
2 1114 of Title 21 of the Oklahoma Statutes,
3 cc. rape by instrumentation, as provided for in Section
4 1111.1 of Title 21 of the Oklahoma Statutes,
5 dd. lewd or indecent proposition or lewd or indecent act
6 with a child under sixteen (16) years of age, as
7 provided for in Section 1123 of Title 21 of the
8 Oklahoma Statutes,
9 ee. use of a firearm or offensive weapon to commit or
10 attempt to commit a felony, as provided for in Section
11 1287 of Title 21 of the Oklahoma Statutes,
12 ff. pointing firearms, as provided for in Section 1289.16
13 of Title 21 of the Oklahoma Statutes,
14 gg. rioting, as provided for in Section 1311 of Title 21
15 of the Oklahoma Statutes,
16 hh. inciting to riot, as provided for in Section 1320.2 of
17 Title 21 of the Oklahoma Statutes,
18 ii. arson in the first degree, as provided for in Section
19 1401 of Title 21 of the Oklahoma Statutes,
20 jj. injuring or burning public buildings, as provided for
21 in Section 349 of Title 21 of the Oklahoma Statutes,
22 kk. sabotage, as provided for in Section 1262 of Title 21
23 of the Oklahoma Statutes,
24

1 11. criminal syndicalism, as provided for in Section 1261
2 of Title 21 of the Oklahoma Statutes,
3 mm. extortion, as provided for in Section 1481 of Title 21
4 of the Oklahoma Statutes,
5 nn. obtaining signature by extortion, as provided for in
6 Section 1485 of Title 21 of the Oklahoma Statutes,
7 oo. seizure of a bus, discharging firearm or hurling
8 missile at bus, as provided for in Section 1903 of
9 Title 21 of the Oklahoma Statutes,
10 pp. mistreatment of a mental patient, as provided for in
11 Section 843.1 of Title 21 of the Oklahoma Statutes,
12 qq. using a vehicle to facilitate the discharge of a
13 weapon pursuant to Section 652 of Title 21 of the
14 Oklahoma Statutes,
15 rr. bombing offenses as defined in Section 1767.1 of Title
16 21 of the Oklahoma Statutes,
17 ss. child ~~pornography~~ sexual abuse material or aggravated
18 child ~~pornography~~ sexual abuse material as defined in
19 Section 1021.2, 1021.3, 1024.1 or 1040.12a of Title 21
20 of the Oklahoma Statutes,
21 tt. child sex trafficking as defined in Section 1030 of
22 Title 21 of the Oklahoma Statutes,
23 uu. abuse of a vulnerable adult as defined in Section 10-
24 103 of Title 43A of the Oklahoma Statutes,

1 vv. aggravated trafficking as provided for in subsection C
2 of Section 2-415 of Title 63 of the Oklahoma Statutes,
3 ww. aggravated assault and battery upon any person
4 defending another person from assault and battery, as
5 provided for in Section 646 of Title 21 of the
6 Oklahoma Statutes,
7 xx. human trafficking, as provided for in Section 748 of
8 Title 21 of the Oklahoma Statutes,
9 yy. terrorism crimes as provided in Section 1268 et seq.
10 of Title 21 of the Oklahoma Statutes,
11 zz. eluding a peace officer, as provided for in subsection
12 B or C of Section 540A of Title 21 of the Oklahoma
13 Statutes, or
14 aaa. domestic abuse by strangulation, a subsequent offense
15 of domestic assault and battery, domestic assault with
16 a dangerous weapon, domestic assault and battery with
17 a dangerous weapon, domestic assault and battery
18 resulting in great bodily injury, ~~or~~ domestic assault
19 and battery with a deadly weapon, or domestic abuse
20 against a pregnant woman with knowledge of the
21 pregnancy as provided for in Section 644 of Title 21
22 of the Oklahoma Statutes.

23 Such offenses shall constitute exceptions to nonviolent offenses
24 pursuant to Article VI, Section 10 of the Oklahoma Constitution.

SECTION 4. This act shall become effective November 1, 2025.

COMMITTEE REPORT BY: COMMITTEE ON PUBLIC SAFETY
February 11, 2025 - DO PASS